

Provisions to be  
amended.

Amendments.

Section seven  
—*cont.*

“ thirty-eight ” there shall be substituted the words “ forty-two consecutive months falling “ between the end of March, nineteen hundred “ and thirty-six, and the beginning of October, “ nineteen hundred and thirty-nine ”.

In subsection (4), for the words “ March, nineteen hundred and thirty-eight ” there shall be substituted the words “ September, nineteen hundred and thirty-nine ”.

Section eight -

In subsection (2), for the words “ April, nineteen hundred and thirty-eight ” there shall be substituted the words “ October, nineteen hundred and thirty-nine ”.

Section eleven -

In subsection (1), in paragraph (a) of the proviso thereto, for the words from “ the period ” to the end of that paragraph, there shall be substituted the words “ September, nineteen hundred and thirty-seven ”; in paragraph (b) of the said proviso, after the word “ million ” there shall be inserted the words “ five hundred thousand ”.

## CHAPTER 10.

An Act to confirm and give effect to an Agreement made between the Treasury and the Ministry of Finance for Northern Ireland with a view to assimilating the burdens on the Exchequer of the United Kingdom and the Exchequer of Northern Ireland in respect of unemployment.

[19th March 1936.]

**W**HEREAS provision was made by the Unemploy- 16 & 17  
ment Insurance (Northern Ireland Agreement) Geo. 5. c. 4.  
Act, 1926, for confirming and giving effect to an agree-  
ment made between the Treasury and the Ministry of  
Finance for Northern Ireland with a view to assimilating  
the burdens on the Exchequer of the United Kingdom  
and the Exchequer of Northern Ireland in respect of  
unemployment insurance :

19 &amp; 20

Geo. 5. c. 18.

And whereas provision was made by the Unemployment Insurance (Northern Ireland Agreement) Act, 1929, for confirming and giving effect to an agreement made between the Treasury and the Ministry of Finance for Northern Ireland for continuing the first-mentioned agreement :

And whereas it has been agreed between the Treasury and the Ministry of Finance for Northern Ireland that the said two agreements should be superseded, as from the first day of April, nineteen hundred and thirty-five, by the agreement set forth in the Schedule to this Act (in this Act referred to as "the scheduled agreement") made between them with a view to assimilating the burdens on the Exchequer of the United Kingdom and the Exchequer of Northern Ireland in respect of unemployment :

And whereas it is expedient to confirm and give effect to the scheduled agreement, to provide for the payment of such sums as may be payable out of the Exchequer of the United Kingdom thereunder, and to repeal the said Acts :

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Confirma-  
tion of  
scheduled  
agreement.

1.—(1) The scheduled agreement is hereby confirmed and shall have effect as if enacted in this Act.

(2) Any sums payable under the scheduled agreement from the Exchequer of the United Kingdom to the Exchequer of Northern Ireland shall be charged on and paid out of the Consolidated Fund of the United Kingdom or the growing produce thereof.

Short title,  
repeal,  
commence-  
ment  
and  
duration.

2.—(1) This Act may be cited as the Unemployment (Northern Ireland Agreement) Act, 1936.

(2) The Unemployment Insurance (Northern Ireland Agreement) Act, 1926, and the Unemployment Insurance (Northern Ireland Agreement) Act, 1929, are hereby repealed.

(3) This Act shall not come into operation unless and until His Majesty by Order in Council declares that a corresponding Act has been passed by the Parliament of Northern Ireland, and shall cease to be in force if and when His Majesty by Order in Council declares that the corresponding Act of the Parliament of Northern Ireland has ceased to be in force.

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## SCHEDULE.

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AGREEMENT MADE BETWEEN THE TREASURY AND THE  
MINISTRY OF FINANCE FOR NORTHERN IRELAND WITH  
A VIEW TO ASSIMILATING THE BURDENS ON THE  
EXCHEQUER OF THE UNITED KINGDOM AND THE  
EXCHEQUER OF NORTHERN IRELAND IN RESPECT OF  
UNEMPLOYMENT.

The Commissioners of His Majesty's Treasury and the Ministry of Finance for Northern Ireland, with a view to assimilating the burdens on the Exchequer of the United Kingdom and the Exchequer of Northern Ireland in respect of unemployment, have entered into the following Agreement, which supersedes as from the 1st day of April, 1935, the Agreements dated the 10th February, 1926, and 14th December, 1928.

1. At the date when this Agreement comes into force and thereafter triennially the Government Actuary shall estimate on the basis of figures supplied by the Departments concerned—

- (a) the total number of the persons insured under the Acts of the Parliament of the United Kingdom and of the Parliament of Northern Ireland relating to Unemployment Insurance, excluding persons insured under any special scheme made thereunder, and
- (b) the total number of the persons insured under the Acts of the said Parliaments relating to Widows', Orphans' and Old Age Contributory Pensions, excluding persons insured as voluntary contributors and persons who have attained the age of 65,

and shall certify in either case the proportion of the number so estimated which represents the number of persons insured under the Acts of the Parliament of Northern Ireland.

The proportions so certified are hereinafter referred to as "the Unemployment Insurance Proportion" and "the Unemployment Assistance Proportion" respectively and in respect of any year shall be deemed to be those certified in the triennial certificates current in that year.

2. There shall be ascertained the payment (if any) necessary to be made as at the end of each financial year as between the Exchequer of Northern Ireland and the Unemployment Fund of Northern Ireland in order to bring the current account of that Fund created by the Unemployment Insurance (Agreement) Act (Northern Ireland), 1926, into parity with the Unemployment Fund of Great Britain: and for this purpose parity shall be deemed to exist between the said current account and the Unemployment Fund of Great Britain when the balance of the current account of the Northern Ireland Fund bears to the sum of the balances of the said current account and the said Unemployment Fund of Great Britain the proportion certified under Article 1. hereof as the Unemployment Insurance proportion.

3. The Government of Northern Ireland will cause to be repaid out of the Unemployment Fund of Northern Ireland at the rate of £40,000 per annum the sum of £2,400,000 being the existing balance of the suspense account of that Fund created under Section 4 of the Unemployment Insurance (Agreement) Act (Northern Ireland), 1926, and the said £40,000 per annum together with interest on the balance of the suspense account for the time being outstanding shall be included as expenditure from the current account of the Northern Ireland Unemployment Fund for the purpose of calculating the balance of the current account of that Fund under the preceding Article.

4.—(1) If in respect of any financial year the payments made by the Exchequer of Northern Ireland to the Unemployment Fund and Unemployment Assistance Fund of Northern Ireland (after taking into account any payment made for the purpose referred to in Article 2 hereof) shall together exceed the sum of—

- (a) the Unemployment Insurance proportion of the payments (after taking into account any payment as aforesaid) made by the Exchequers of the United Kingdom and Northern Ireland to the Unemployment Funds of Great Britain and Northern Ireland, and
- (b) the Unemployment Assistance proportion of the payments so made to the Unemployment Assistance Funds of Great Britain and Northern Ireland,

the Exchequer of the United Kingdom shall contribute to the Exchequer of Northern Ireland three-quarters of the excess :

Provided that if, according to a Certificate to be given at the end of each financial year by the Government Actuary, the number (based upon the average of the monthly returns) of unemployed persons in Northern Ireland between the ages of 16 and 64 (both inclusive) in that year is less than twenty per cent. of the estimated number of persons insured under the 'Widows', 'Orphans' and 'Old Age Contributory Pensions Acts (Northern Ireland)' (excluding the classes of persons referred to in Article 1 (b)), the contribution under this Article in respect of that year shall be reduced by one-twelfth part for each complete one per cent. by which the said percentage is less than twenty.

(2) For the purpose of this Article a grant paid to a local authority under any Act of the Parliament of the United Kingdom providing for financial adjustments necessitated by the delay in relieving local authorities in respect of expenditure in connection with relief of the poor occurring by reason of the second appointed day for the purposes of the Unemployment Act, 1934, having been postponed, or under any corresponding Act of the Parliament of Northern Ireland shall be deemed to be a payment to the Unemployment Assistance Fund of Great Britain or Northern Ireland as the case may be.

5. If in respect of any financial year the payments by the Exchequer of Northern Ireland referred to in the last preceding Article are less than the sum therein stated, the difference between the said payments and the said sum shall be paid by that Exchequer to the Exchequer of the United Kingdom.

6. Payments on account of such contributions as may ultimately be found to be due under Article 4 or Article 5 hereof from one Exchequer to the other may be made of such amounts and at such times as the Joint Exchequer Board may determine to be proper, and for this purpose the Board may make provisional estimates of the percentage referred to in the proviso to Article 4 (1) hereof.

7. If at any time the classes of persons insured or of persons entitled to apply for an unemployment allowance the rates of contribution the rates or conditions of benefit or the regulations under which allowances are paid or the general method of charging administrative expenses or the method of financing the Unemployment or Unemployment Assistance Funds differ in Great Britain and Northern Ireland there shall be made such

adjustment, if any, in the amounts of the contributions from one Exchequer to the other as the Joint Exchequer Board, after consulting the Government Actuary, may consider just.

8. Any question arising under this Agreement whether as to the amount of any payment for the purpose referred to in Article 2 hereof or of any contribution from one Exchequer to the other under Articles 4 and 5 hereof or otherwise shall be determined by the Joint Exchequer Board, whose decision shall be final.

9. This Agreement shall not come into operation until confirmed by Acts of the Parliaments of the United Kingdom and Northern Ireland respectively but upon being so confirmed shall apply as from the 1st day of April, nineteen hundred and thirty-five.

(Signed)

N. CHAMBERLAIN.

(Signed)

JAMES BLINDELL.

(Signed)

29th July 1935.

H. M. POLLOCK.

## CHAPTER 11.

An Act to apply certain sums out of the Consolidated Fund to the service of the years ending on the thirty-first day of March, one thousand nine hundred and thirty-five, one thousand nine hundred and thirty-six and one thousand nine hundred and thirty-seven. [30th March 1936.]

Most Gracious Sovereign,

**W**E, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom in Parliament assembled, towards making good the supply which we have cheerfully granted to Your Majesty in this session of Parliament, have resolved to grant unto Your Majesty the sum hereinafter mentioned; and do